

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 21-019

**Amendments to Title 5, Chapter 5, Section 5-501.4 of the Chickasaw Nation Code
(Initial Appearance)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has established rules and procedures for the Chickasaw Nation District Court, and

WHEREAS, the Chickasaw Tribal Legislature desires to provide for an Initial Appearance by criminal defendants.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 5, Section 5-501.4 (additions and changes of case are shown in red, deletions are stricken through):

"SECTION 5-501.4

INITIAL APPEARANCE ARRAIGNMENT.

A. **Initial Appearance Arraignment Defined.** Initial Appearance Arraignment is the bringing of an accused person before the Court, informing him of the charge against him and of his rights, receiving his plea and setting bail. Initial Appearance Arraignment shall be held in open court upon the appearance of an accused in response to a Criminal Summons or Citation or, if the accused was arrested and confined, within seventy-two (72) hours of the arrest, Saturdays, Sundays and legal holidays excepted. If the accused is arrested without a warrant and confined, the arresting officer must complete an Affidavit of Probable Cause to Make Warrantless Custodial Arrest and present it to a judicial officer within forty-eight (48) hours for determination of probable cause to detain the accused until arraignment is held.

B. **Procedure at Initial Appearance Arraignment.** Initial Appearance Arraignment shall be conducted in the following order:

1. The Judge should request the Prosecutor to read the charges.
2. The Prosecutor should read the entire complaint, deliver a copy to the Defendant unless he has previously received a copy thereof, and state the minimum and maximum authorized punishment.

3. The Judge should determine that the accused understands the charge against him and explain to the Defendant that he has the following rights:

- a. the right to remain silent;
- b. the right to be tried by a jury upon request; and
- c. the right to consult with an attorney prior to disposition of the case. ~~if the Defendant cannot afford an attorney, one will be appointed for him; if the Defendant desires to consult with an attorney, the arraignment will be postponed.~~

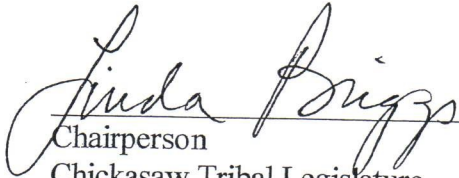
4. When advising a Defendant of his right to obtain counsel, the Judge shall also advise the Defendant that he may hire a private attorney or request court-appointed counsel. ~~The Judge shall ask the Defendant if he wishes to obtain counsel and, if the Defendant so desires, he will be given a reasonable time to obtain counsel.~~ Requests for court-appointed counsel shall be made on a form devised by the Court for that purpose. If the Defendant shows his indigence, counsel will be appointed. ~~If the Defendant is allowed time to obtain or consult with counsel, he shall not be required to enter a plea until the date set for his appearance.~~

5. The Judge should then ask the Defendant whether he wishes to plead guilty, *nolo contendere*, or not guilty.

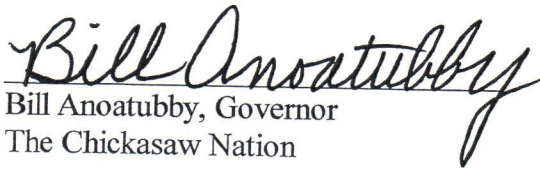
C. Receipt of Plea at Initial Appearance Arraignment. The Defendant shall plead guilty, *nolo contendere*, or not guilty to the offense charged. A Defendant may change his plea at any time up to the disposition of the case.

- 1. If the Defendant refuses to plead, the Judge shall enter a plea of not guilty for him.
- 2. If the Defendant pleads not guilty, the Judge shall set a trial date and conditions for bail prior to trial.
- 3. If the Defendant pleads *nolo contendere* or guilty, the Judge shall question the Defendant personally to determine that he understands the nature of his action, the rights that he is waiving, and that his action is voluntary. The Judge may refuse to accept a guilty plea and enter a plea of not guilty for him. If the guilty plea is accepted, the Judge may immediately sentence the Defendant or order a sentencing hearing.
- 4. A Defendant may change his plea at any time up to the disposition of the case."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2004, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: **MAY 21 2004**
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: This resolution changes the arraignment of a criminal defendant to an initial appearance. The language of the resolution ensures that each defendant will be given an opportunity to obtain private counsel or have court appointed counsel if the defendant is indigent prior to the disposition of the case.

Requested By: Tim Colbert, Chairman
Court Development Committee

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